Date-30.09.2026

Supply Agreement

This **Supply Agreement** (the **Agreement**) is made on this _30th day of Sep. 2026 by and between

Nihva Technologies Pvt. Ltd., a company incorporated under company's act 1956, having its corporate office at.187,G-Block 1stfloor,Thermax Chowk,M.I.D.C above Kotak Bank_Chinchwad Pune_411019, hereinafter called as **The Purchaser**

and

Gauri Enterprises, a firm register under the provisions of Partnership Act , having its office and Shop at Shop No.A10 Moraya Complex M.I.D.C.Pimpri Pune 411018 hereinafter called as **The Supplier**

The Purchaser and The Supplier individually called a **Party** and together the **Parties**.

1 Definitions and Interpretation

1. **Definitions.** In this Agreement, unless the context otherwise requires:
    - **Master List** means the list of items, descriptions, specifications and catalogue numbers provided by the Purchaser under Clause 2.
    - **PO** means a Purchase Order issued by the Purchaser in accordance with Clause 6.
    - **Material** means items categorized in the Master List as: a) **Consumable**; b) **Hardware**; c) **Tools and Equipment**; d) **Special Material**.
    - **MTC** means Material Test Certificate or other quality/compliance certificates required by the PO.
    - **Business Day** means a day other than Sunday or public holiday in Maharashtra, India.
2. **Interpretation.** Headings are for convenience only. Singular includes plural and vice versa.

2 Scope and Master List

1. **Master List Provision.** The Purchaser will provide the Supplier with a Master List of all items, including descriptions, specifications, unit of measure and any applicable part numbers or drawings. The Master List may be updated by the Purchaser from time to time by written notice.
2. **Supplier Response.** Within [2] Business Days of receipt of the Master List (or any update), the Supplier will provide a written schedule confirming: (a) its ability to supply each listed item; and (b) the proposed unit price for each item.

3 Prices and Price Changes

1. **Fixed Rates.** Prices quoted by the Supplier and accepted by the Purchaser shall remain fixed and firm for the duration specified in the accepted quote or until revised in writing by the Supplier in accordance with this Clause.

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2. **Supplier Notice of Change.** The Supplier may propose changes to rates only by delivering written notice to the Purchaser. Such notice is the Supplier's sole responsibility and must state the effective date and the basis for the change.

3. **Negotiation of Changes.** Any proposed change in rates shall be subject to negotiation and mutual agreement between the Parties. The Purchaser is not obliged to accept any proposed change.

4. **No Unilateral Increase After PO.** Once a PO has been issued and received by the Supplier, the Supplier is bound to supply at the rates agreed at the time the PO was issued, unless the Purchaser received prior written notice of a rate change and expressly accepted it before issuing the PO.

4 Purchase Orders and Forecasting

1. **Monthly PO Cycle.** In normal circumstances the Purchaser will issue a single PO covering requirements for one calendar month. The Purchaser will issue such PO by the 25th day of the preceding month.

2. **PO Content.** Each PO will specify item descriptions, quantities, delivery location, delivery date, applicable prices, and any special instructions or documentation requirements.

3. **Acceptance.** A PO is deemed accepted by the Supplier if the Supplier does not reject it in writing within [3] Business Days of receipt. Acceptance binds the Supplier to supply in accordance with the PO and this Agreement.

5 Delivery and Lead Times

1. **Delivery Deadline.** The Supplier shall ensure delivery of all items specified in a PO no later than the 1st day of the month succeeding the PO date, unless otherwise agreed in writing.

2. **Delivery Terms.** Delivery shall be DAP (Delivered at Place) [insert delivery location] or as otherwise agreed in the PO. Risk passes on delivery; title passes on payment unless otherwise agreed.

3. **Late Delivery.** If the Supplier fails to deliver by the required date, the Purchaser may: (a) accept late delivery and recover liquidated damages of [0.5%] of the PO value per week of delay up to [5%] of the PO value; or (b) reject the delivery and procure substitute goods from a third party, with the Supplier liable for any additional cost reasonably incurred by the Purchaser. Liquidated damages are without prejudice to other remedies.

6 Quality, Short Supply and Nonconformance

1. **Notification.** The Purchaser will notify the Supplier by email of any quality issues, short supply, wrong supply, size variation or other nonconformance within a reasonable time after discovery.

2. **Rectification.** The Supplier shall, within **48 hours** of receipt of such notification, commence corrective action and, at the Supplier's cost, promptly rectify the error and make good the supply to meet PO specifications. If immediate rectification is not possible, the Supplier shall provide a written remediation plan and timeline acceptable to the Purchaser.

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3. **Rejection and Return.** Nonconforming goods may be rejected and returned at the Supplier's cost. The Supplier shall bear all costs of return, replacement, rework and any consequential costs reasonably incurred by the Purchaser.

7 Documentation and Compliance

1. **Documents on Delivery.** The Supplier shall provide with each delivery all necessary documents including MTCs, warranty cards, packing lists, certificates of conformity, user manuals and any other documents specified in the PO.

2. **Regulatory Compliance.** The Supplier warrants that all goods comply with applicable laws, standards and regulations and will obtain and maintain all permits, licenses and approvals required to supply the goods.

8 Invoicing and Payment

1. **Invoicing.** The Supplier shall raise a valid tax invoice for supplies by the 5th day of each month for goods delivered in the previous month. Each invoice must reference the relevant PO number and include required supporting documents.

2. **Payment Terms.** The Purchaser shall pay undisputed invoices by the 5th day of the month following the month in which the invoice was raised (effectively 30 days credit). Payment shall be made by bank transfer to the Supplier's nominated account.

3. **Late Payment.** If the Purchaser fails to pay undisputed amounts by the due date, interest shall accrue at the lower of (a) [1.5%] per month; or (b) the maximum rate permitted by law, calculated daily from the due date until payment.

4. **Disputed Invoices.** The Purchaser may withhold payment of any disputed portion of an invoice provided it notifies the Supplier of the dispute within [10] Business Days of receipt of the invoice and the Parties shall promptly attempt to resolve the dispute in good faith.

9 Taxes and Duties

1. **Taxes.** Prices are exclusive of applicable taxes unless otherwise stated. Each Party shall be responsible for taxes imposed on it by law. The Supplier shall provide tax invoices and other documentation required for the Purchaser to claim input tax credits where applicable.

10 Warranties and Remedies

1. **Supplier Warranties.** The Supplier warrants that: (a) goods will conform to the Master List, PO specifications and applicable standards; (b) goods are free from defects in material and workmanship for a period of [12] months from delivery (or as otherwise specified in the PO); (c) it has full title and the right to supply the goods.

2. **Remedies.** In addition to Clause 6 remedies, the Purchaser may require repair, replacement, credit or refund at its option. Supplier shall bear all costs associated with warranty claims.

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11 Insurance and Indemnity

1. **Insurance.** The Supplier shall maintain adequate insurance including product liability, commercial general liability and, where applicable, professional indemnity insurance with reputable insurers and provide certificates on request.

2. **Indemnity.** The Supplier shall indemnify and hold harmless the Purchaser from and against all claims, losses, liabilities, damages, costs and expenses arising from Supplier's breach, negligence, willful misconduct, or infringement of third-party rights.

12 Limitation of Liability

1. **Exclusion.** Except for liability arising from (a) death or personal injury caused by negligence; (b) fraud or willful misconduct; or (c) Supplier's indemnity obligations, neither Party shall be liable to the other for indirect, incidental, special or consequential losses.

2. **Cap.** The aggregate liability of each Party for all claims arising under or in connection with this Agreement shall not exceed the total amount paid or payable by the Purchaser to the Supplier under this Agreement in the [12] months preceding the event giving rise to the claim.

13 Confidentiality and Data Protection

1. **Confidentiality.** Each Party shall keep confidential all non-public information received from the other and shall not disclose it except to employees, agents or subcontractors who need to know and are bound by confidentiality obligations.

2. **Data Protection.** Where personal data is processed, the Parties shall comply with applicable data protection laws and implement appropriate technical and organizational measures.

14 Subcontracting and Assignment

1. **Subcontracting.** The Supplier shall not subcontract the whole of its obligations without the Purchaser's prior written consent. The Supplier remains fully responsible for acts and omissions of its subcontractors.

2. **Assignment.** Neither Party may assign this Agreement without the prior written consent of the other, except to an affiliate or in connection with a sale of substantially all assets or business, provided the assignee assumes obligations in writing.

15 Force Majeure

Neither Party shall be liable for failure or delay in performing obligations caused by events beyond its reasonable control (force majeure). The affected Party shall notify the other promptly and use reasonable efforts to mitigate the effect. If force majeure continues for more than [60] days, either Party may terminate the affected POs by written notice.

16 Term, Termination and Consequences

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1. **Term.** This Agreement commences on the Effective Date and continues for an initial term of [three] years and thereafter until terminated in accordance with this Clause.

2. **Termination for Cause.** Either Party may terminate this Agreement or any PO by written notice if the other Party materially breaches and fails to remedy within [30] days of notice.

3. **Termination for Convenience.** Either Party may terminate this Agreement for convenience on [90] days' prior written notice.

4. **Consequences.** On termination, the Supplier shall complete any accepted POs and the Purchaser shall pay for conforming goods delivered. Clauses intended to survive termination shall survive.

17 Notices

All notices under this Agreement shall be in writing and delivered by email and registered post to the addresses set out at the head of this Agreement or as otherwise notified. Notices are effective on receipt.

18 Amendments

No amendment to this Agreement is effective unless in writing and signed by authorized representatives of both Parties.

19 Dispute Resolution and Governing Law

1. **Negotiation.** The Parties shall first attempt to resolve disputes by good faith negotiation.

2. **Arbitration.** If unresolved within [30] days, disputes shall be finally settled by arbitration under the Arbitration and Conciliation Act, 1996, by a sole arbitrator appointed by mutual agreement. The seat of arbitration shall be Pune, Maharashtra, India. The language shall be English.

3. **Governing Law.** This Agreement is governed by the laws of India.

20 General Provisions

1. **Entire Agreement.** This Agreement, together with the Master List and accepted POs, constitutes the entire agreement between the Parties and supersedes prior agreements.

2. **Severability.** If any provision is held invalid, the remainder shall continue in full force.

3. **Waiver.** Failure to enforce a right is not a waiver of that right.

4. **Relationship.** The Parties are independent contractors; nothing creates a partnership, joint venture or agency.

21 Audit and Records

The Supplier shall keep accurate records relating to supplies and invoices for [3] years and permit the Purchaser to audit such records on reasonable notice during Business Hours.

22 Miscellaneous Operational Clauses

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- **Packing and Labelling.** Supplier shall pack and label goods in accordance with PO instructions and applicable laws.

- **Spare Parts.** For hardware and equipment, Supplier shall make spare parts available for [5] years or as specified in the PO.
- **Change Control.** Any technical or commercial change requested by either Party shall be documented and agreed in writing before implementation.
- **Performance Review.** Parties shall meet quarterly to review performance, forecasts and pricing.

IN WITNESS WHEREOF, the parties have executed this Purchase Agreement as of the **Effective Date** set forth above. This Agreement constitutes the **entire understanding** between the parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, and agreements, whether written or oral. This Agreement may be executed in **counterparts**, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. The parties acknowledge that they have read, understood, and agree to be bound by the terms and conditions herein, and this Agreement shall be governed by and construed in accordance with the laws of **the Republic of India**.

For Nihva Technologies Pvt. Ltd.
(Purchaser)

Name: Balasaheb Chavan

Title: Purchase Executive

For Gauri Enterprises
(Supplier)

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Name: Vijay C Raut

Title: Proprietor